July 28, 1866.

CHAP. CCCX. — *An Act to provide for the Suits, Judgments, and Business of the United States Provisional Court for the State of Louisiana.*

Proceedings in the United States provisional court for Louisiana, to be transferred to the district court, and to be as though originally commenced there.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That all suits, causes, prosecutions, and proceedings in the United States provisional court for the State of Louisiana, with the records thereof, be, and the same are hereby, transferred to the United States district court for the eastern district of Louisiana; and all suits, causes, prosecutions, and proceedings so transferred shall be proceeded with in said court and tried and determined, and process and judgment issued and executed therein and by said court in the same manner and with like effect as if the same had been commenced originally in said district court: *Provided, however*, That any suit or proceeding so transferred, of which the circuit court could take jurisdiction under the laws of the United States, shall in like manner be heard and determined in the circuit court held in said district.

Proviso.

Record in certain suits to remain in district court without further action.

SEC. 2. *And be it further enacted*, That in case suits or proceedings are pending in said provisional court which could not have been instituted in said circuit or district court, the record shall remain in said district court without further action therein.

Judgments, &c. of the provisional court to become at once the judgments, &c. of the district or circuit court.

SEC. 3. *And be it further enacted*, That all judgments, orders, decrees, and decisions of the United States provisional court for the State of Louisiana, relating to the causes hereby transferred to the district court of the eastern district of Louisiana, or to the circuit court held in said district, shall at once become the judgments, orders, decrees, and decisions of said district court, or said circuit court, unless the same are inconsistent with the rules and proceedings thereof; and may be enforced, pleaded, and proved, as the judgments, orders, decrees, or decisions of said district court, or said circuit court.

APPROVED, July 28, 1866.

July 28, 1866.

See *Post*, p. 448.

CHAP. CCCXI. — *An Act to remove the Office of Surveyor-General of the States of Iowa and Wisconsin to Plattsmouth, Nebraska.*

Office of surveyor-general of Iowa and Wisconsin to be removed to Plattsmouth, Nebraska.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That it shall be the duty of the Secretary of the Interior, as soon after the passage of this act as may be, to cause the office of surveyor-general of Iowa and Wisconsin to be removed to Plattsmouth in the Territory of Nebraska, and to make the necessary provisions for immediate and effective operations; and when so removed the duties and jurisdiction of said surveyor-general shall be coextensive with the limits of the Territory of Nebraska, and include the State of Iowa, and the same shall constitute a surveying district.

Nebraska and Iowa to constitute a surveying district.

Repealing clause.

SEC. 2. *And be it further enacted*, That all acts and parts of acts inconsistent with the provisions of this act, be, and the same are hereby, repealed.

APPROVED, July 28, 1866.

July 28, 1866.

CHAP. CCCXII. — *An Act to prevent Officers of the Navy from being deprived of their regular Promotion on Account of Wounds received in Battle, and for other Purposes.*

Physical disqualification of officers of navy, occasioned by wounds received in line of duty, and not incapacitating them, not to prevent promotion on active list.

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the provision of section four of the "Act to amend an act entitled an act to establish and equalize the grade of line officers of the United States navy," approved July sixteen, eighteen hundred and sixty-two, requiring that no officer in the naval service shall be promoted to a higher grade upon the active list until he has been examined by a board of naval surgeons and pronounced physically qualified to perform all his duties at sea, shall not be construed to apply to and exclude from the promotion to which he would otherwise